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29 October 2024

IN THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS

UNITED STATES, *Appellee*, v. Airman (E-3) BRIAN D. HOWARD, USAF *Appellant*.	**ANSWER TO ASSIGNMENTS OF ERROR** ACM 40478 (f rev) Panel No. 1 29 October 2024

ANSWER TO ASSIGNMENTS OF ERROR

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TO THE HONORABLE, THE JUDGES OF THE UNITED STATES AIR FORCE COURT OF CRIMINAL APPEALS:

Issues Presented

I.

WHETHER [APPELLANT'S] DISOBEYING ORDERS AND DERELICTION OF DUTY CONVICTIONS ARE FACTUALLY INSUFFICIENT AND TWO OF HIS DERELICTION OF DUTY CONVICTIONS ARE LEGALLY INSUFFICIENT?

I.

WHETHER THE MILITARY JUDGE ERRED WHEN SHE REFUSED TO INSTRUCT ON LACK OF MENTAL RESPONSIBILITY?

II.

WHETHER [APPELLANT] IS ENTITLED TO SENTENCE RELIEF BECAUSE OF THE 223-DAY DELAY BETWEEN ANNOUNCEMENT OF THE SENTENCE AND DOCKETING WITH THIS COURT.

III.

WHETHER THE MILITARY JUDGE ABUSED HER DISCRETION WHEN SHE DENIED CHALLENGES FOR CAUSE AGAINST TWO PANEL MEMBERS WHO QUESTIONED THE CENTRAL DEFENSE OF LACK OF MENTAL RESPONSIBILITY?

IV.

WHETHER, AS APPLIED TO [APPELLANT], 18 U.S.C. § 922 IS UNCONSTITUTIONAL BECAUSE THE GOVERNMENT CANNOT DEMONSTRATE THAT BARRING HIS POSSESSION

V.

WHETHER [APPELLANT'S] ASSAULT AND INSUBORDINATE CONDUCT CONVICTIONS ARE LEGALLY SUFFICIENT.

STATEMENT OF THE CASE

The United States generally accepts Appellant's Statement of the Case. Additionally, Appellant faced the following charges and specifications at trial:

- *Article 89*

The specification for Article 89 alleged that, on or about 17 May 2022, at or near Misawa Air Base, Japan, Appellant lifted up a knife against Lt Col CT, his superior commissioned officer in command, who was then in execution of this office. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 858.)

Statement of the Case

The United States generally accepts Appellant's Statement of the Case. Additionally, Appellant faced the following charges and specifications at trial:

Article 89. The specification for Article 89 alleged that, on or about 17 May 2022, at or near Misawa Air Base, Japan, Appellant lifted up a knife against Lt Col CT, his superior commissioned officer in command, who was then in execution of this office. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 858.)

[1] This issue is raised in the appendix pursuant to United States v. Grostefon, 12 M.J. 431 (C.M.A. 1982).

[2] This issue is raised in the appendix pursuant to Grostefon.

- *Article 90*

The specification for Article 90 alleged that, on or about 17 May 2022, at or near Misawa Air Base, Japan, Appellant, having received a lawful command from Lt Col CT to pack his belongings and go to the Misawa Air Base Passenger Terminal, willfully disobeyed that command. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 859.)

- *Article 91*

The Article 91 charge had two specifications. The first alleged that, on or about 17 May 2022, at or near Misawa Air Base, Japan, Appellant, assaulted MSgt AM, a non-commissioned officer who was in the execution of his office, by chasing him with a knife. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 859.)

The second specification alleged that, on or about 11 May 2022, at or near Misawa Air Base, Japan, Appellant, willfully disobeyed a lawful order from MSgt AM to be tested for COVID-19. The member panel acquitted Appellant of this offense. (R. at 859.)

- *Article 92*

The Article 92 charge had three specifications. The first alleged that, between on or about 4 April 2022 and on or about 11 May 2022, at or near Misawa Air Base, Japan, Appellant was derelict in the performance of his duties in that he willfully failed to complete out-processing requirements as it was his duty to do. (ROT, Vol. I, Charge Sheet). The member panel convicted Appellant of this offense. (R. at 859.)

The second specification alleged that, on or about 12 May 2022, at or near Misawa Air Base, Japan, Appellant was derelict in the performance of his duties in that he willfully failed to

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